2. it may recommend to the concerned government or authority the initiation of proceedings for prosecution or any other action against the guilty public servant;

3. it may recommend to the concerned government or authority for the grant of immediate interim relief to the victim;

4. it may approach the Supreme Court or the high court concerned for the necessary directions, orders or writs.

Role

From the above, it is clear that the functions of the commission are mainly recommendatory in nature. It has no power to punish the violators of human rights, nor to award any relief including monetary relief to the victim. Notably, its recommendations are not binding on the concerned government or authority. But, it should be informed about the action taken on its recommendations within one month. In this context, a former member of the Commission observed[3]: 'The government cannot wash away the recommendations made by the Commission. The commission's role may be recommendatory, advisory, yet the Government considers the cases forwarded by it. It is, therefore, improper to say that the commission is powerless. It enjoys great material authority and no government can ignore its recommendation'.

Moreover, the commission has a limited role, powers and jurisdiction with respect to the violation of human rights by the members of the armed forces[4]. In this sphere, the commission may seek a report from the Central government and make its recommendations. The Central government should inform the Commission of the action taken on the recommendations within three months.

The commission submits its annual or special reports to the Central government and to the state government concerned. These reports are laid before the respective legislatures, along with a memorandum of action taken on the recommendations of the commission and the reasons for non-acceptance of any of such recommendations.

Problems

The commission itself identified the various problems faced by it in its effective functioning and explained them in the following way[5]:

1. **Administrative Constraints:** The commission is compliant with Paris Principles which states that "the National Human Rights Institutions shall have an infrastructure which is suited for the smooth conduct of its activities, in particular adequate funding and staff. The purpose of this funding should be to enable it to have its own staff and premises, in order to be independent of the Government and not to be subject to financial control which might affect its independence from the perspective of human rights".

The role of the commission is expanding day by day and it is handling more or less one lakh complaints every year reflecting the growing trust reposed by the citizens of India. This necessitates devolution of powers to the Chairperson of the commission in administrative as well as financial matters.

2. **Financial Constraints:** The commission receives grants-in-aid every year from the Government of India, Ministry of Home Affairs. It may spend such sums as it thinks fit for performing its functions and such sums shall be treated as expenditure payable out of these grants. With this